

HOUSE No. 411

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to national criminal background checks for section 12 and 15 licenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>

HOUSE No. 411

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 411) of Bradley H. Jones, Jr., and others relative to authorizing the Alcoholic Beverages Control Commission to obtain national criminal background checks for certain felons applying for alcoholic beverage licenses. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 340 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to national criminal background checks for section 12 and 15 licenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6 of the General Laws, as amended by section 3 of Chapter 29 of the Acts of
2 2021, is hereby amended by inserting after section 172O the following new section:-

3 “Section 172P. Notwithstanding section 172 or any other general or special law to the
4 contrary, the alcoholic beverages control commission may obtain all available criminal offender
5 record information for every applicant for an original license under section 12 or 15 of chapter
6 138. The commission may make such record information available to the local licensing
7 authority which is reviewing the application. The commission or local authority under this
8 section shall not disseminate the information for any purpose other than reviewing and approving
9 a license under said sections 12 and 15 of said chapter 138.”